stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

It is so ordered.

CHIEF JUSTICE ROBERTS, with whom JUSTICE SOTOMAYOR, JUSTICE KAGAN, and JUSTICE JACKSON join, dissenting.

The President ordered the demolition of the East Wing of the White House to make way for a new, privately funded state ballroom in its place. Construction of the ballroom has proceeded apace for the better part of a year.

That construction is likely unlawful. Pursuant to its plenary constitutional authority over the District of Columbia and federal property, Congress has explicitly prohibited the construction of any "building or structure . . . on any reservation, park, or public grounds of the Federal Government in the District of Columbia without express authority of Congress." 40 U. S. C. § 8106. The ballroom is a building or structure being erected on federal park grounds—President's Park—in the District of Columbia. Yet Congress has not passed any law resembling "express authority" for the Executive's construction of it.

Page Proof Pending Publication

The Government points to two statutory provisions in support of the ballroom project. The first authorizes Congress to appropriate funds for "the care, maintenance, repair, alteration, refurnishing, improvement, air-conditioning, heating, and lighting (including electric power and fixtures) of the Executive Residence at the White House." 3 U. S. C. § 105(d)(1). This fiscal year Congress appropriated $2,475,000 pursuant to section 105(d)(1) "for required maintenance, resolution of safety and health issues, and continued preventative maintenance" at the Executive Residence. Consolidated Appropriations Act, 2026, Pub. L. 119–75, 140 Stat. 451. That appropriation of a couple million dollars for ordinary Executive Residence maintenance and repairs

likely does not authorize the President to use hundreds of millions of dollars in private donations to tear down the East Wing and construct a ballroom in its stead.

The second provision tasks the National Park Service with managing national park land, such as President's Park, in a manner that "conserve[s]" the "historic objects" on that land. 54 U. S. C. § 100101(a). This is likely not express authorization to raze the East Wing and replace it with a ballroom.

Given this apparent absence of statutory authority, the District Court for the District of Columbia enjoined the ballroom's continued construction in response to a lawsuit filed by the National Trust for Historic Preservation in the United States. The Court of Appeals affirmed. Today this Court grants the Government's request to stay that injunction and allow construction of the ballroom to go forward—not because that construction is legal, but on the ground that the Trust likely lacks Article III standing to challenge it.

Page Proof Pending Publication

To have standing to sue as the representative of its members, an organization such as the Trust must show, among other things, that one of its members would have standing to sue in her own right. See *Hunt* v. *Washington State Apple Advertising Comm'n*, 432 U. S. 333, 342–343 (1977). The Trust points to executive committee member Alison K. Hoagland's asserted aesthetic injury from the ballroom's construction to satisfy that requirement.

To serve as the basis for her standing, Hoagland's aesthetic injury must be "concrete" and "particularized" to her—"real, and not abstract." *Spokeo, Inc.* v. *Robins*, 578 U. S. 330, 340 (2016) (internal quotation marks omitted). Separating the concrete and particularized from the abstract can be difficult in this context. Our precedents, however, have noted that an injury to a plaintiff's "mere esthetic interests" can qualify as "concrete and particularized." *Summers* v. *Earth Island Institute*, 555 U. S. 488, 494 (2009). And we said in one of our leading standing precedents that it was "[o]f course" true that a "desire to . . . observe an animal species" like a particu-

lar crocodile, "even for purely esthetic purposes," was "undeniably a cognizable interest for purpose of standing." *Lujan* v. *Defenders of Wildlife*, 504 U. S. 555, 562–563 (1992).

Given the distinctive nature of the White House and Hoagland's focused and substantiated interest in viewing it in its traditional form, her aesthetic injury from the construction of the ballroom is concrete and particularized.

The White House is an iconic American building whose symbolism and history are wrapped up in its architecture. As President Theodore Roosevelt once remarked while thanking Congress for expressly appropriating funds for the construction of the East and West Wings: "The stately simplicity of [the White House's] architecture is an expression of the character of the period in which it was built, and is in accord with the purposes it was designed to serve. It is a good thing to preserve such buildings as historic monuments which keep alive our sense of continuity with the Nation's past." 36 Cong. Rec. 12 (1902) (Roosevelt's second annual message).

Page Proof Pending Publication

Hoagland, meanwhile, is deeply committed to the preservation of such historic American buildings, as evidenced by her decades-long membership in the Trust, leadership role in the organization, academic work as a professor of history and historic preservation, volunteer work providing presentations on the District of Columbia's historic architecture, and authorship of works on historic American architecture. Given this commitment to the preservation of historic buildings, Hoagland enjoys viewing and appreciating such buildings in person. As a Capitol Hill resident, Hoagland regularly visits the White House to take in the historic building's beauty and to appreciate its symbolism. By overshadowing the traditional White House, Hoagland explains, the new ballroom will detract from the building's message of republican simplicity and thereby worsen her viewing experience.

Hoagland's injury suffices for standing. A historic preservationist such as Hoagland can be aesthetically injured in a

concrete, particularized way by the transformation of a historic building that she frequently enjoys, just as an environmentalist can sustain a concrete, particularized aesthetic injury from the extinction of a particular animal or the transformation of a particular forest or river that he regularly enjoys. See, *e. g.*, *Defenders of Wildlife*, 504 U. S., at 562–563; *Friends of the Earth, Inc.* v. *Laidlaw Environmental Services (TOC), Inc.*, 528 U. S. 167, 180–183 (2000). With the Court's rejection of Hoagland's standing today, however, it now is the case that "I want to look at a crocodile" can adequately answer the ever critical "what's it to you?" question of Article III standing, while "I want to look at the White House" cannot—no matter how distinctive the particular viewer's interest in looking at it may be.

The Court would distinguish our environmental aesthetic injury cases on the ground that the plaintiffs there alleged "*more* than mere offense." *Ante*, at 1072. But so has Hoagland. She has not simply alleged "distress at or disagreement with" the ballroom's construction. *FDA* v. *Alliance for Hippocratic Medicine*, 602 U. S. 367, 390, n. 3 (2024). She instead has alleged that the ballroom's construction would damage what for her is a concrete and particularized interest in physically viewing, appreciating, and studying a historic building as it is.

Page Proof Pending Publication

Having reframed Hoagland's aesthetic injury as "mere offense" at the ballroom's construction, the Court reasons that very little would remain of Article III's concrete and particularized injury requirement were we to recognize standing here. While it is true that nearly every government action will offend someone somehow, see *ante*, at 1072, not every government action will interfere in a particular way with someone's documented interest in viewing a particular historic building. The Court's string cite to precedents rejecting the standing of taxpayers who challenged federal policies with which they disagreed is inapposite for the same reason. See *ante*, at 1071 (citing *Valley Forge Christian College* v.

Americans United for Separation of Church and State, Inc., 454 U. S. 464, 485 (1982); *Schlesinger* v. *Reservists Comm. to Stop the War*, 418 U. S. 208, 227 (1974); *United States* v. *Richardson*, 418 U. S. 166, 177 (1974)). Hoagland is not simply some taxpayer who fancies the thought of the traditional White House unadorned by a ballroom.

The Court also observes that even if viewing something for "purely esthetic purposes" is a "cognizable interest" for standing, having such an interest is not sufficient to establish standing. See *ante*, at 1072; *Defenders of Wildlife*, 504 U. S., at 562. The claimed injury still must be "concrete and particularized." *Ante*, at 1073. But we have said that "[t]o establish the concrete and particularized injury that standing requires," a plaintiff's demonstration that his "mere esthetic interests" are affected "will suffice." *Summers*, 555 U. S., at 494.

And if a standalone concrete and particularized aesthetic injury can be recast as mere offense, what made the environmental plaintiffs with standing in our prior cases different from Hoagland? What saved their aesthetic injuries from being classed as mere distaste for the actions of government or private industry? In *Laidlaw*, the plaintiffs had standing to fight the pollution of a river in which they had "aesthetic and recreational" interests. 528 U. S., at 183. On the Court's retelling, it is critical that those plaintiffs did not only like to look at the river's "natural beauty," but also liked to use it by fishing and swimming in it and by hiking and camping alongside it. *Id.*, at 180–183; see *ante*, at 1071–1072. Certainly one may enjoy a river not just by looking at it but also by swimming in it and hiking along it. But the principal way a person enjoys a historic building or object is by looking at it. The distinction between Hoagland and the environmental plaintiffs does not hold up.*

Page Proof Pending Publication

*With respect to the Court's reference to national security concerns, the Government informed the District Court that its construction work on below-ground secure facilities was "driven by national security concerns

* * *

The White House is not just any building, and—when it comes to historic preservation—Hoagland is not just any person. In failing to appreciate as much, the Court misconceives the plaintiff's injury, allowing the Executive's likely infringement of the Legislature's power of the purse and authority to regulate federal property in the District of Columbia to continue. Today's decision is no victory for the separation of powers.

Winston Churchill once remarked that "[w]e shape our buildings, and afterwards our buildings shape us." Onwards to Victory: War Speeches by the Right Hon. Winston S. Churchill, C.H., M.P. 317 (1944). All the more reason to ensure that those responsible follow the rules in deciding what to tear down and what to build up at the People's House.

I respectfully dissent.

Page Proof Pending Publication

---

independent of the above-grade construction" of the ballroom. No. 25–cv–4316, ECF Doc. 30, p. 48. And the District Court's injunction prohibits only the building of a ballroom—not the building of below-ground national security facilities or above-ground work necessary to protect them.

REPORTER'S NOTE

The attached opinion has been revised to reflect the usual publication and citation style of the United States Reports. The revised pagination makes available the official United States Reports citation in advance of publication. The syllabus has been prepared by the Reporter of Decisions for the convenience of the reader and constitutes no part of the opinion of the Court. Other revisions may include adjustments to formatting, captions, citation form, and any errant punctuation. The following additional edits were made:

Page Proof Pending Publication

None